

Mr I Morrison
Courtyard Management
Company (Rocklane Farm) Ltd
11-14 The Courtyard
Rocklane Farm
Liscombe Park
LU7 0GY

18 March 2024

Reference: 72953642

Dear Ian

Your Property Owners Insurance

The above policy with Great Lakes Insurance SE via Beech Underwriting Agencies Ltd is due for renewal on 19th April 2024.

The total payable is £1,812.73 including Insurance Premium Tax (IPT) at the current rate, and our Policy Administration Fee of £40.00; full premium breakdown can be found in the **Important Information** section below.

It is important that you review all the documentation, ensuring the information is correct and cover meets your requirements.

If any of the information is incorrect, or if you would like to make a change to your policy please contact us. **Failure to provide accurate and up-to-date information may result in cover being invalid, a claim not being paid or an additional premium being payable.**

IMPORTANT: Please pay attention to following documents which are enclosed:

- **Our Terms of Business:** Clear Insurance Management's Terms and Conditions, which explain how we will manage your policy.
- **Statement of Fact:** This outlines the information that the insurer holds about you and on which they based their quotation.
- **Policy Schedule:** This is an outline of the cover provided under the policy including cover levels, and relevant sums insured, excesses and exclusions.
- **Policy Wording:** This sets out the cover provided and the terms, conditions and exclusions which apply.
- **Insurance Product Information Document (IPID) / Policy Summary:** This provides an overview of the key aspects of the insurance policy.

Policy Documents

Your documents will be emailed, however if you would prefer to receive a copy by post, please let us know.

What To Do Next

- It is important that you read and understand the information within the **Important Information** section below.
- Please check the statements and answers that are shown on these documents and let us know if anything is incorrect, as any inaccuracies or omissions may invalidate your cover. Should any change be required then please contact us.
- Familiarise yourself with our terms and conditions which are detailed in the enclosed terms of business agreement document; these explain how we will manage your policy.
- Refer to the 'Payment Options' section within the Important Information document for details of how you can pay for your policy.
- To go ahead with this policy please contact us prior to the renewal date. It is essential that you contact our office prior to forwarding remittance.

We look forward to receiving your renewal instructions, however, should you have any queries in the meantime please do not hesitate to contact us.

Yours sincerely,

Paula Presneill

Paula Presneill
Account Handler
Clear Insurance Management
Email: paula.presneill@thecleargroup.com
Call: 01622 656122

Important Information

Premium Breakdown

	(£)
Premium excl. IPT:	1,560.47
IPT:	187.26
Admin Fee:	40.00
Insurer Fee:	25.00
Total:	£1,812.73

Please note this policy is renewable.

Important Changes to Cover from Renewal

Please see below for significant changes to your insurance policy

An increased Storm excess now applies - £2500

Your Requirements

Our understanding of your insurance requirements is based on the information you have provided to us, as outlined below:

The structure of 10, 12-14 The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury, Leighton Buzzard, Bedfordshire, LU7 0GY on as broad a basis as is generally available in the market, including cover for contents, loss of rent, employers' liability and liability to the public at a competitive price

In response to our pre renewal information request, you have confirmed there are no changes.

Please let us know if you think we have not understood your requirements correctly.

Our Proposal

We're proposing cover with Great Lakes Insurance SE, due to the reason(s) below:

We are proposing a policy with ERGO UK Specialty Limited on behalf of Great Lakes Insurance UK Limited, via Beech Underwriting Agencies Ltd at a total cost to you of £1812.73 which is inclusive of Insurance Premium Tax at 12% and any fees. This year there is a 7.65% increase in premium due to index linking and a standard rate increase which we are more commonly facing within a 'hardening market'.

On this basis we propose you renew with your current insurer as the policy provides you with wide-ranging cover which meets your insurance requirements.

Market Selection

Sourcing

You should be aware that in sourcing business with The Insurer, that we have acted as your agent.

Placement

You should be aware that in placing business with The Insurer, that we have acted as your agent. We have only approached one insurer for terms. We will use an intermediary (another broker) to help us find you the right insurance. In this instance, we have found an insurance product through another broker and will place the business with them for you.

Claims

You should be aware that in the event of a claim, we will act as your agent.

Our Remuneration

We charge a policy administration fee in respect of this policy which we have detailed. In addition, the insurers will pay us commission, which is a percentage of their premium net of Insurance Premium Tax at the current rate.

Assessing Your Sums Insured

Property Insurance

One of the most important parts of insurance cover is the accuracy and adequacy of the Property Declared Value. **By property this could be Buildings, Tenants Improvements, Stock, Contents, Machinery, Computers just to name a few.** Insurer documentation confirms the sums to be insured.

As the policyholder you are responsible for ensuring the property insured is for the correct amount. Insurers generally do not look at this on your behalf as this is the responsibility of policyholder to assess and request the cover they require.

If the property sum insured is too high, then you may be paying too much for your insurance. If the property sum insured is too low then not only do you run the risk of not being able to replace/reinstate your property in the event of a total loss, but you may also find that payments for smaller claims will be reduced.

In the event of **underinsurance**, the insurers will normally apply what is known as an '**Average Clause**'. This is a policy condition that allows the insurer to proportionately reduce the amount that they pay you if you have not insured the property for the full reinstatement value.

An Insurer can use this clause if you have not set your sums insured at the amount required to cover a total loss, and this is referred to as 'Underinsurance'. For instance, if you have only insured for 50% of the total value of property at risk, you will only receive 50% of the value of any claim.

To illustrate this point further here is an example:

Total value at risk: £1,000,000

You have set your Sum Insured as: £500,000

If you make a claim for amount of: £25,000

Your Insurer will only pay: £12,500

When you look at the insurer's policy documents you may see two amounts next to a property type insured. The Declared Value is the cost of replacing/reinstating the property on the first day (Day One) of each period of insurance.

The second amount is known as the sum insured and this will be higher than the Declared Value. The difference is an allowance for rising costs from the day of the loss and the final reinstatement of the property.

The Declared Value on day one must still be adequate because if it is not the average clause will apply. How this works is explained above.

You must also notify the insurers of any changes to the building during the policy period, such as extensions and improvements, and the Declared Value should be increased to reflect such changes.

If you feel your Sums Insured need reviewing, we suggest that an Insurance Reinstatement Cost Assessment Survey is undertaken and in the case of buildings insurance this should be undertaken by a RICS registered surveyor, or another relevant specialist, as this is where their experience lies.

If you would like to discuss what needs to be taken into consideration when assessing how much to insure for then please contact us to discuss. There are many parts to getting the correct amounts to be insured. Some of these are commonly overlooked such as debris removal costs, allowance for work in progress costs, installation costs or project management/professional fees just to name a few.

Business Interruption: What You Should Consider

Indemnity Period

The Indemnity Period should be the length of time it takes your income to return to normal levels following a loss. You can find the current indemnity period under the Business Interruption section of your policy.

The period you select needs to take into consideration how long it would take to get things such as planning permission and licences, lead times for replacing machinery, the time to replace lost customers who have gone elsewhere during your downtime.

All this will impact how long it would take the business to return to the trading levels pre loss.

Assessing Your Sums Insured

It is worth remembering when you're setting your sums insured for Business Interruption cover a loss might occur towards the end of the period of insurance. You'll need to consider your future projected income when calculating your sum insured.

Endorsements, Limitations, Conditions, Warranties and Subjectivities

Please refer to the Insurer Documentation, Summary and Policy Wording which outline all conditions and exclusions applicable to your policy. We would like to draw your attention to the following main clauses that apply to your policy.

Terms, Conditions and Exclusions

Endorsement

130a Increased Construction Excess - Please refer to page 2 of the quote schedule

906 Flat Roof Condition - Please refer to page 2 of the quote schedule

907 Index-Linking Clause - Please refer to page 2 of the quote schedule

908 Your Bank or Building Societies Interest Clause - Please refer to page 2 of the quote schedule

Statement of Fact Condition - Please refer to page 2 of the quote schedule

Day One Uplift 15% - Please refer to page 3 of the quote schedule

Subsidence Ground Heave and Landslip Extension - Please refer to page 3 of the quote schedule

Accidental Damage Extension - Please refer to page 4 of the quote schedule

903 - Minimum Security Clause - Please refer to page 4 of the quote schedule

Endorsement 1: - It is hereby noted and agreed that Property Owners Liability extends to cover all communal areas that the Insured is responsible for.

Tenancy - Flats 12 and 13 are owner occupied & Flats 10 and 14 let to shorthold tenancy agreements

Increased Storm Excess - £2,500 - A £2,500 excess applies to each and every Storm claim on this policy

Claims Conditions - Please refer to page 11 of the policy wording

Reasonable Precautions - Please refer to page 17 of the policy wording

General Policy Conditions - These can be found on page 38 of the policy wording. They apply in addition to the conditions contained in each of the policy. The following apply:

- Arbitration
- Adjustment of premium
- Non-Invalidation

It is important that you read and understand these endorsements, exclusions, limitations and other conditions and warranties. Please contact us if you require any further explanation or assistance.

Failure to adhere to any significant endorsements and other conditions and warranties can invalidate your policy, compromise your cover and result in claims not being paid. It is therefore vital that you are clear on your responsibilities.

The **Policy Wording** will include conditions that you must meet so cover applies if a claim is made. The insurer can refuse to pay out if all the policy's conditions are not met.

The policy may also include warranties. A **warranty** is a condition you must comply with; if a warranty is not fulfilled, the insurer can suspend cover or cancel it.

An exclusion is a clause in the policy that states which risks the insurance won't cover.

Finally, the proposal from the insurer can contain conditions called subjectivities. A subjectivity is something the insurer will want you to carry out within a specified timescale. For example, Cover may be subject to a survey or the requirement to complete a proposal form. There will often be a deadline date for you to comply with these subjectivities and if you fail to meet the deadline then this may impact the cover being provided and any claims submitted.

Excesses

The insurer may also add an excess. An excess is the amount you need to pay in the event of a claim and is therefore not covered by your insurance policy.

Excess(es) Applying to Your Policy

Storm £2500
Subsidence £2500
All other losses £250 - except where any insured buildings constructed of bitumised mineral felt in relation to flood £500

Information You Must Disclose

The terms of any insurance that we arrange on your behalf will be based upon the information provided by you.

You must disclose all 'Material Circumstances' to us or your insurers, both at the outset and throughout the period of insurance cover. Material Circumstances are all the items of information that may influence the insurer's decision as to whether to provide cover for your risk, the premium to be charged, and the terms of your insurance.

To identify what must be disclosed, you are required to carry out a reasonable search of your business and its activities.

As part of the search, you should consult with all senior management. This includes anyone who plays a significant role in the making of decisions regarding your business, regardless of whether that individual is a member of your board or is formally in a management role. This might include people

such as site managers, risk managers, operational and business leaders. You will need to consider where to draw the line given the management of your business.

The most serious consequence of failing to disclose material information could be the invalidation of your cover. In this instance it would mean that a claim will be rejected.

The following must be disclosed:

- Claims and loss history
- Losses or incidents where claims were not made
- Criminal (non-motoring) Convictions
- Significant adverse credit history such as a CCJ
- Previous declinature by insurers to provide cover

Further examples of what might be a Material Circumstance will vary from business to business and according to the type of policy and might include:

- Property construction
- Whether the property is unoccupied
- Planned building works
- DHSS or student tenants
- History of vandalism or squatting
- Previous fires or damage at the property
- Injuries to members of the public
- Signs of subsidence or similar conditions
- Types of goods stored e.g., Hazardous or Flammable
- Types of processes undertaken
- Driving license endorsements
- Fixed penalty notices
- Changes to your address
- Changes to any insured vehicle, including security, modifications, use or annual mileage
- Activities in hazardous locations
- Airside or waterborne activities
- Vehicles carrying hazardous substances
- Employee disputes
- Theft or fraud by an employee
- Claims made against a director or trustee, even if in connection with a different organisation
- A motor accident/claim under a different policy
- Accusations of misleading advice or design
- Statutory Prosecutions
- Motor convictions that you or any other insured driver have received
- Criminal convictions or pending prosecutions for any driver to be covered.
- HSE Investigations or Prosecutions

During the lifetime of the policy, you must notify us immediately of any changes in circumstance which may increase the possibility of loss, damage or legal liability covered by this policy.

This list is not exhaustive and if you are in doubt as to whether any change in your circumstances need to be notified to insurers then please contact us with the details as soon as possible.

Claims

It is a condition of any insurance policy that all claims, losses, or incidents that may give rise to a claim are reported as soon as possible. Failure to do so may result in a claim not being paid either in part or in full. It is therefore very important to report any incident without delay. We are here to help you when you need to make a claim. You can contact our claims team using the details below:

Clear Insurance Management
7 & 8 Tolherst Court
Turkey Mill

Ashford Road
Maidstone
ME14 5SF
maidstoneclaims@thecleargroup.com
01622 945014

We recommend that you save our claims contact details and other important information in a secure location that can be easily accessed in an emergency (such as cloud storage or on a mobile device).

You will also find instructions in your policy documents about what you should do in the event of a loss occurring.

Payment Options

Please see below for ways your premium can be paid:

Credit/Debit Card	Call us to make a payment over the phone.
BACS/Automatic Transfer	Account Name: Clear Insurance Management Ltd Non-Statutory Trust GBP Client Account Account No.: 65304586 Sort Code: 60-15-03 Reference: 130235842
Premium Finance	It may be possible to pay your premiums by instalments. Please contact us to discuss your options.

Terms of Business for Commercial Clients

Thank you for inviting Clear Insurance Management Limited to assist you with your insurance requirements. We undertake to use our skill and care to provide you with the ability to survive the insurable events for which you have asked us to provide cover.

This document sets out the terms on which we agree to act for you and contains details of our regulatory and statutory responsibilities as well as your obligations. It supersedes all versions previously issued by us.

We ask that you carefully read the content and contact us immediately should you require further clarification. These terms become effective as soon as we start exchanging information about your insurance requirements.

ABOUT US

Clear Insurance Management Limited (Clear) is an independent insurance broker, authorised and regulated by the Financial Conduct Authority (FCA) to transact general insurance and consumer credit business. Clear Councils, Clear Wholesale, Clear MPW, Pi-Property Insurance, Marketline, LawSure, LawSure Insurance Brokers, Assured Indemnities, Techinsure, Arborplan, Clear John Ansell, Pet Professionals at Work (PPAW), and British Activity Holiday Insurance Services (BAHIS) are trading names of Clear Insurance Management Limited. Our Financial Services Register number is 307982. You can check this information on the Financial Services Register by visiting the FCA's website at <https://register.fca.org.uk/> or by contacting the FCA on 0800 111 6768 (Freephone) or 0300 500 8082 from the UK, or +44 207 066 1000 from abroad.

We are members of the British Insurance Brokers' Association (BIBA) and the Brokerability network of independent insurance brokers.

OUR PRODUCTS AND SERVICES

As an independent insurance broker, we have access to a wide range of insurance products from many leading insurance companies and Lloyd's underwriters.

Unless otherwise advised, the services we provide (the 'Services') are as follows:

- Acting on your behalf when sourcing and placing your insurance and with any claims made on policies we have arranged
- Providing advice on your risk exposure and insurance needs, based on a fair analysis of the market
- Arranging cover to meet your demands and needs
- Helping with ongoing changes

Clear is not under a contractual obligation to conduct insurance distribution exclusively with one or more insurance undertakings and does not provide personal recommendations. Clear provides advice on the basis of a fair analysis of the market unless we specifically state otherwise.

Unless you tell us otherwise we will act on the understanding that we have your authority to agree to insurance policy wordings on your behalf.

METHODS OF COMMUNICATION

We will normally communicate with you by post, telephone and where available email, in addition to any meetings we may have with you. Other formats are available on request.

Please let us know if you would prefer not to receive communications by any particular medium.

Please note that telephone calls may be recorded for training and monitoring purposes.

INSURER SECURITY

Whilst we monitor the financial strength of the insurers with whom we place business it should be noted that the claims-paying ability of even the strongest insurers could be affected by adverse business conditions. We cannot, therefore, guarantee the solvency of any insurer or underwriter.

A liability for the premium, whether in full or pro rata, may arise under policies where a participating insurer becomes insolvent.

RISK INFORMATION

The terms of any insurance that we arrange on your behalf will be based upon the information provided by you to us or to your insurers.

As a commercial customer, or someone buying insurance mainly for purposes related to your trade, business or profession, you have a duty to give a 'fair presentation' of the risk to insurers. This means that you must clearly disclose every material circumstance which you, your senior management or persons responsible for arranging your insurance,

know or ought to know following a reasonable search, before your cover is placed, when it is renewed and throughout the life of the policy. A material circumstance is anything that may influence an insurer's judgement over whether to take the risk and, if so, on what terms. If you are in any doubt as to whether a circumstance is material, you are advised to disclose it. Failure to disclose a material circumstance may entitle an insurer to impose different terms on your cover or reduce the amount of a claim payable, and in some cases your cover could be invalidated which would mean that a claim would not be paid. You are advised to keep copies of any correspondence you send to us or direct to your insurers.

OUR REMUNERATION

Remuneration for our services is normally in the form of commission (or brokerage) which is a percentage of your insurance premium and payable by the insurer, a fee, as agreed with you, or a combination of the two.

We may also receive income from providers of premium financing facilities where, with your agreement, we have made such arrangements on your behalf.

We may sometimes also earn income for the provision of other services to you, which will be agreed with you on an individual basis.

In the event of a policy being cancelled mid-term, and not replaced by another policy, we reserve the right to retain the commission and any fees earned on the original transaction.

For each insurance policy, including any subsequent renewal, you have a right to request information regarding any remuneration that we have received as a result of placing your insurance business.

CHARGES

An Administration Fee of £20 may be levied if a cheque payment for premiums due fails to clear through the banking system.

SETTLEMENT TERMS

You are responsible for the prompt settlement of insurance premiums so that we can make the necessary payments to your insurers. Unless otherwise advised, premiums and related fees are due prior to renewal or inception of the policy. We have no obligation to fund any premiums on your behalf and reserve the right to cancel or lapse your Insurance Policy or cover if you fail to make any payment as it falls due. We cannot be held responsible for any loss which you may suffer as a result of a policy being cancelled or otherwise prejudiced due to the late payment of a premium where the delay is attributable to you.

You shall pay all amounts due in full without any deduction or withholding except as required by law and you shall not be entitled to assert any credit, set-off or counter claim against us in order to justify withholding payment of any such amount in whole or in part. We may, without limiting our other rights or remedies, set-off any amount owing to us against any amount payable by us to you. In the event of late payment, you may be required to pay statutory interest from the due date until the date it is paid.

All amounts payable by you are exclusive of amounts in respect of value added tax chargeable for the time being (VAT). Where any taxable supply for VAT purposes is made by us to you, you shall, on receipt of a valid VAT invoice from us, pay to us such additional amount in respect of VAT as is chargeable at the same time as payment is due.

METHODS OF PAYMENT

We normally accept payments by cheque, credit or debit card or by bank transfer.

Payment by instalments can be arranged with specialist premium finance providers (please note that we act independently of any particular provider). We will give full information about premium payment options when we provide quotations and at renewal. We act as Credit Broker and not the lender.

In the absence of your instructions to the contrary before expiry date, we will automatically renew your policy if payment is usually made by direct debit.

PERSONAL CREDIT CHECKS

To comply with Consumer Credit legislation, providers of personal credit are required to carry out affordability assessments before making advances of credit. This means that whenever we are asked to arrange personal premium finance, we will pass your name, address and date of birth to the finance provider, to enable it to carry out an assessment. In assessing your application, the provider may search information held by a credit reference agency.

Please note the credit reference agency will add details of the search and your application to their records, whether or not your application proceeds, whilst a record of the search will be added to your credit record, we are advised this will not have any detrimental effect on your credit rating or history.

CREDIT AGREEMENT PAYMENT DEFAULTS

If any direct debit or other payment due in respect of a credit agreement entered into with our suggested provider of premium finance to pay insurance premiums, associated fees and charges is not met when presented for payment, or if you end or do not complete such credit agreement, you acknowledge and agree that it may be necessary for us or the premium finance provider to cancel on your behalf the insurance policies being paid by the said agreement, unless you immediately make other arrangements to pay the remaining balance of the insurance premiums. After cancellation, you agree that you will be responsible for any time on risk charge still outstanding and the finance provider's reasonable costs after application of any refunds allowed by the insurers. You will be responsible for putting in place any alternative insurance arrangements you need, unless you have been able to satisfy the requirements we may have in such a situation to provide an alternative solution.

HANDLING CLIENT AND INSURER MONEY

We hold money received for premiums, return premiums and claims under a non- statutory trust in accordance with the FCA Client Money rules.

1. The Non-Statutory Trust permits us to hold client money as Designated Investments. Any shortfall attributable to falls in market value of client money held as a designated investment in accordance with CASS 5.5.14R will be met by us.
2. The Non-Statutory Trust Deed permits us to use client money held to make advances of credit to our clients in order to fund premiums and facilitate prompt refund and claim payments, subject to strict controls.

In dealing with us you agree to our holding client money in this way. A copy of the Trust Deed is available on request. In most cases under the terms of our agencies, such money is held on behalf of the insurer at the risk of the insurer who permits their money to be mingled with client money whilst subordinating their own rights to the rights of the clients. Otherwise monies are held on behalf of the client until the insurer is paid. In some cases client money is passed to other authorised intermediaries for onward payment to insurers.

Returns earned on client money and designed investments will be retained by Clear for its own use.

MANAGING YOUR DATA

At Clear we take the protection of our customers' data seriously.

In sourcing, arranging and administering your insurance policies we will need to collect personal information and keep it up to date. We also need to share information with other parties such as insurers, loss adjustors and claims handling companies.

We may also use the data we hold about you to provide you with information about other products and services which we feel are appropriate.

Our Customer Privacy Notice provides details of how we use and share your information as well as your rights and how to exercise them. You can access it at www.thecleargroup.com/privacy-policy or contact us if you would like us to send you a copy.

QUOTATIONS

Unless stated otherwise in our documentation, all quotations provided for new insurances are valid only for a period of 30 days from the date of issue.

You should be aware that quotations may change or be withdrawn if the information given to us or your insurers in proposal forms or declarations differs from that provided at the time the quotation was issued.

CHANGES TO YOUR COVER

We will normally deal with any requests to increase or amend cover on the day your instructions are received, or the next working day if a weekend or public holiday. Sometimes changes cannot be processed without obtaining additional information. If additional information is required we will contact you as quickly as possible.

We will confirm changes to your policy, once agreed, in writing. We will also advise you of any extra premiums you must pay or premiums we must return to you. Refunds of less than £25 may be held to your credit and offset against future premium payments unless you specifically request otherwise.

RECEIPT OF INSTRUCTIONS

We do not consider instructions to arrange or change cover which are sent to us by post, electronic mail or facsimile, or left on voicemail, to have been received until they reach the relevant personnel in our offices. We do not consider instructions sent by text message to have been received until we have responded to the specific message.

We do not accept responsibility for instructions which do not reach us at all due to failures in the postal, electronic or telecommunications systems.

DOCUMENTATION

Our aim is to produce documentation and issue correspondence in a clear and understandable format. In the event of any uncertainty we would ask you to let us know immediately. Our staff are always happy to clarify the cover provided. You should check all policy documentation to ensure that the details are correct and the cover provided meets with your requirements. Any errors should be notified to us immediately.

All policies contain conditions and exclusions and some contain warranties and excesses. It is your responsibility to examine the documentation to familiarise yourself with these. A breach of a policy condition may result in non-payment of a claim and breach of a warranty may invalidate or suspend the cover if it is not complied with precisely. If you do not fully understand any of your policy terms and conditions or exclusions please contact the office for a fuller explanation. We recommend that you keep policy documents for as long as a claim is possible under the policy. If your policy includes Employers' Liability insurance, it is prudent to keep a copy of all Employers' Liability Certificates issued.

TRANSFERRED BUSINESS

If we take over the servicing of insurance policies which were originally arranged through another insurance broker or intermediary or directly with an insurer, we do not accept liability for any claim arising out of the advice given by that broker, intermediary or insurer, nor for any errors, omissions or gaps in your current insurance protection.

Please contact us without delay should any aspect of a policy, which has been transferred to us cause you concern or if you need an immediate review. Otherwise we will endeavour to review all transferred policies as they fall due for renewal.

MAKING A CLAIM

Many insurers provide a 24-hour Helpline in respect of claims and you should consult your policy documentation for contact details.

You must report all incidents that could give rise to a claim as soon as you become aware of them, either by contacting your insurer on their helpline or by telephoning our office. You will be advised if you need to complete a claim form or produce documentation to support your claim.

Claim payments will be made in favour of the name shown on the policy. If payment is required to a third party, a signed mandate instruction is required for the insurer to make payment to a specific payee along with a brief explanation for the request.

In certain circumstances late notification may result in your claim being rejected.

If the claim involves damage to your property, please do not dispose of damaged items and/or authorise repair work (except in an emergency or to prevent further damage) until we or your insurers advise that you can.

If your claim involves damage to third party property or injury to persons please pass copies of all correspondence, including solicitors' letters, to us immediately and unanswered. Any attempt to negotiate or respond to the incident, without prior reference to your insurers or us, may prejudice your cover.

You should be aware that a claim arising after renewal of the policy has been invited, may affect the assessment and acceptance of renewal by your insurers.

CONFLICTS OF INTEREST

We aim at all times to treat you fairly. We will not deliberately put ourselves in a position where our interests, or our duties to another party, prevent us from discharging our duty to you. We maintain internal procedures and controls to identify and manage any potential conflicts so that at all times the interests of our customers are reasonably protected. Where potential conflicts are particularly complex or difficult to manage, we will seek to agree with you the best way to protect your interests and may ask you to confirm that you are happy to proceed on that basis.

COMPLAINTS PROCEDURE

We recognise the importance of service and set ourselves high standards. Should there be an occasion when we do not meet your expectations we are equally committed to dealing with any complaint in a thorough and professional manner. If you wish to register a complaint or request a copy of our complaints procedures please contact us:

- In writing, addressed to Complaints at the address shown at the end of this document;
- By telephone to 020 7280 3450
- By email to complaints@thecleargroup.com

If you cannot settle your complaint with us you may be entitled to refer it to the Financial Ombudsman Service (FOS). You can find out more about this by visiting the FOS web site at www.financial-ombudsman.org.uk.

If you are not eligible for referral to the FOS, Clear has an appeal process that ensures that your complaint is reviewed by a senior manager not involved in the original Complaint handling.

A copy of our procedures for dealing with complaints is available on request.

FINANCIAL SERVICES COMPENSATION SCHEME

We are included in the Financial Services Compensation Scheme (FSCS). You may be entitled to compensation from the FSCS if we cannot meet our obligations. This depends on the type of business and the circumstances of the claim. Insurance advising and arranging is covered for 90% of the claim, without any upper limit. For compulsory classes of insurance, insurance advising and arranging is covered for 100% of the claim, without any upper limit. Further details about compensation scheme arrangements are available from the FSCS.

TERMINATION OF AUTHORITY

You may terminate our authority to act on your behalf with 14 days' written notice or as otherwise agreed. Notice of this termination must be given in writing and will take effect from the date of receipt. Termination is without prejudice to any transactions already initiated unless otherwise agreed in writing. You will be liable to pay for any transactions or adjustments effective prior to termination and we will be entitled to retain any and all fees or brokerage payable in relation to policies placed by us prior to the date of termination.

CANCELLATION OF POLICIES

If you wish to cancel your policy you may be entitled to a refund of part of your premium as long as no claims have occurred during the time you have been on cover. The refund due may not necessarily be proportionate to the remaining period of cover. Additionally you should note the following:

- Insurers do not normally allow refunds in cases where a minimum and deposit premium has been charged
- Cancellation may not be possible until you return your certificate of insurance to us or your insurers
- Cancellation of a direct debit does not necessarily cancel a policy and any balance of premium owing may be requested by the insurers.

When your policy ends or is cancelled, we will send you any documentation and information to which you are entitled on request.

LIMITATION OF LIABILITY

We do not accept any responsibility or liability to you under any circumstances for any:

- a. Special, indirect or consequential loss or damage or any loss of profit, income, anticipated savings, production or accruals; or
- b. Loss following declinature of a claim, or reduction of any claim indemnity payment or avoidance of your policy by an insurer which results from your:
 - i) failure to provide complete and/or accurate information which we or your insurer have requested from you in quoting for any risk we place on your behalf;
 - ii) breach of any terms, conditions or warranties within your policy of insurance; or
 - iii) failure to comply with any of the claims conditions in your policy of insurance.

Sub-clauses ii) and iii) above do not apply where such breach or failure was caused as a direct result of a breach of duty in the provision of professional services.

Unless otherwise agreed in writing, our total aggregate liability to you in respect of any one claim or series of related claims shall not exceed £10,000,000 (Ten Million Pounds Sterling).

Our liability to you shall also be limited the extent of our responsibility for any loss, taking into account the responsibility of other parties, including you and any sub-broker or placing broker. You agree that our liability shall not be increased by your inability to recover from such other person or party, or your decision not to recover from any other person or party.

Nothing in these terms excludes or limits our liability for death or personal injury caused by our negligence, or for any fraud, fraudulent misrepresentation or breach of any regulatory obligation.

FORCE MAJEURE

We shall not be liable to you if we are unable to perform our service as a result of any cause beyond our reasonable control. In the event of any such occurrence affecting us we shall notify you as soon as reasonably practicable.

LAW AND JURISDICTION

These Terms of Business shall be governed by and construed in accordance with English Law. In relation to any legal action or proceedings arising out of or in connection with these Terms of Business we both irrevocably submit to the exclusive jurisdiction of the English courts.

Clear Insurance Management Limited
1 Great Tower Street
London
EC3R 5AA
Company Reg. No: 3712209

Commercial Terms of Business v1.16
July 2023